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FRONTIER WORKER PERMIT



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FRONTIER WORKER PERMIT

Frontier Worker Permits are available to EU, EEA and Swiss citizens who are not primarily resident in the UK but who are, or fall to be treated as, working or self-employed in the UK (also known as cross-border commuters).

It is mandatory for all Frontier Workers (except Irish citizens) to hold a Frontier Worker Permit in order to enter the UK as a Frontier Worker.

Family members of Frontier Workers may apply for an EU Settlement Scheme Family Permit (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-family-permit/>).

Requirements for a Frontier Worker Permit

In order to qualify for a Frontier Worker Permit you will need to satisfy UK Visas & Immigration that:

- You are an EEA, EU or Swiss citizen; and
- You are not primarily resident in the UK; and
- You are either a worker or self-employed person in the UK or a retained worker or self-employed person in the UK;
- The above criteria were met immediately prior to 31 December 2020 and have been met continuously since.

The exact requirements you will need to satisfy will vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your Frontier Worker Permit application with one of our immigration barristers, contact our Frontier Worker Permit Scheme lawyers on <https://www.google.co.uk> 0203 617 9173 or enquiries@immigrationbarristers.co.uk or complete our enquiry form below.

Not Primarily Resident in the UK

You will be treated as not primarily resident in the UK if either:

- You have been physically present in the UK for less than 180 days in any rolling 12-month period between 1 January 2020 and the date your application is considered; or
- You have been present in the UK for more than 180 days in any rolling 12-month period between 1 January 2020 and the date your application is considered but have returned to your country of primary residence at least once in every 6-month period or twice in every 12-month period; or
- You have been present in the UK for more than 180 days in any rolling 12-month period between 1 January 2020 and the date your application is considered and there are exceptional reasons for not being able to travel to your country of primary residence at least once in every 6-month period or twice in every 12-month period.

Where you have spent part of a day in the UK, this will be treated as though you were present in the UK for the full day.

If relying on frequency of travel, the country you have travelled to must be your country of primary residence. However, this does not necessarily need to be an EU member state. Frontier Workers can be resident anywhere outside of the UK.

Exceptional reasons for not meeting the Frontier Worker Permit travel requirement

In order to demonstrate exceptional reasons for not meeting the Frontier Worker Permit travel requirement you will need to satisfy the Home Office that there were circumstances beyond your control or other compelling practical or compassionate reasons which meant you could not travel.

Worker or Self-employed Person

In order to qualify as a Frontier Worker you must have worked or been engaged in self-employment in the UK at least once in the 12 months before 31 December 2020.

In order to maintain your status as a Frontier Worker you must continue to come to the UK for work or self-employment at least once in every rolling 12-month period from your first instance of work or self-employment in the UK in 2020.

Your work or self-employment must be genuine and effective, and not merely marginal and ancillary to your life in the UK. <https://www.google.co.uk>

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If you have not been present in the UK as a worker or self-employed person for a period of 12 months or more since 1 January 2020 then you may still qualify for a Frontier Worker Permit on the basis of being a retained worker or self-employed person. [g=richmond+chambers+in](https://www.google.co.uk/search?q=richmond+chambers+in)

In order to retain your status as a worker or self-employed person you must have become unemployed for one of the reasons below within 12 months of your last period of work in the UK:

- Because you are temporarily unable to work in the UK due to illness or an accident;
- Because you are in duly recorded involuntary unemployment;
- Because you are involuntarily unemployed and have embarked on vocational training;
- Because you voluntarily stopped working to start vocational training related to your previous work;
- Because you are temporarily unable to work in the UK following pregnancy or childbirth.

In order to retain worker or self-employed status, your previous work must have been genuine and effective, and not merely marginal and ancillary to your life in the UK.

You may continue to retain your retained worker or self-employed person status after the initial 12 month period if you are looking for work or self-employment in the UK and have registered as a jobseeker with an unemployment office or a recruitment agency.

However, if you have not commenced work or job seeking in the UK after this 12 month period then you will lose your retained worker or self-employed person status.

Frontier Workers working in the UK From 1 January 2021

If you intend to begin employment in the UK whilst residing outside of the UK, but do not start working until, on, or after 1 January 2021, then you will not be eligible for a Frontier Worker Permit. You will instead need to apply to enter the UK under a different work route under the new points-based immigration system, including via the Skilled Worker [\(https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/skilled-worker-visa/\)](https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/skilled-worker-visa/) route.

Entry to the UK as a Frontier Worker

You will need to produce a valid Frontier Worker Permit in order to be admitted to the UK as a Frontier Worker (unless you are an Irish citizen).

Validity Period of Frontier Worker Permits

If your application for a Frontier Worker Permit is successful then your Frontier Worker Permit will be valid for:

- 5 years if you meet the eligibility criteria as a current frontier worker; or
 - 2 years if you meet the eligibility criteria as someone with retained worker status.
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- <https://www.google.co.uk/search?q=richmond+chambers+in>

Extending a Frontier Worker Permit

As a Frontier Worker you will be able to apply to renew your Frontier Worker Permit for as long as you continue to be a Frontier Worker in the UK.

Frontier Worker Permit Scheme and ILR

The Frontier Worker Permit Scheme does not lead directly to settlement in the UK. If you wish to pursue settlement or long-term status in the UK, you should consider making an application for Pre-Settled Status (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-pre-settled-status/>) or Settled Status (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-settled-status/>) under the EU Settlement Scheme, or leave to enter or remain under the Skilled Worker (<https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/skilled-worker-visa/>) route.

Frontier Worker Permit Application Fees

The Home Office does not charge any application fee for a Frontier Worker Permit and applicants under the Frontier Worker Permit Scheme are not required to pay the Immigration Health Charge.

Family members of Frontier Workers

There is no specific immigration category for dependent family members of Frontier Workers. Instead, family members who wish to join a Frontier Worker in the UK or accompany a Frontier Worker to the UK should apply for an EU Settlement Scheme Family Permit (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-family-permit/>). Family members of Frontier Workers may also apply for Pre-Settled Status (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-pre-settled-status/>) or Settled Status (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-settled-status/>) under the EU Settlement Scheme.

How Our Immigration Barristers Can Help

The Citizens' Rights (Frontier Workers) (EU Exit) Regulations 2020 (<https://www.legislation.gov.uk/ukdsi/2020/9780348212228>) and associated policy guidance contain strict requirements in terms of the documents that must be provided in

support of a Frontier Worker Permit Scheme application. It can be helpful to get advice from an immigration lawyer in order to ensure that your application is presented and technically correct. <https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>

Our team of business immigration barristers has experience in assisting employers and skilled workers across a variety of industries in companies of all sizes. Our barristers can help you with planning to ensure that you meet your start date and ensure that your career progression will fit your immigration goals.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to skilled workers as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Applications for EU Settlement Scheme Pre-Settled Status 

Applications for EU Settlement Scheme Settled Status 

Applications for EU Settlement Scheme Family Permits 

Applications for Skilled Worker Visas 

Fresh applications, Appeals, Administrative reviews and Judicial reviews for Frontier Workers 

WHAT CAN WE HELP YOU WITH?

To discuss your Frontier Worker Permit application with one of our immigration barristers, contact our Frontier Worker Permit Scheme lawyers on 0203 617 9173 or complete our enquiry form below.

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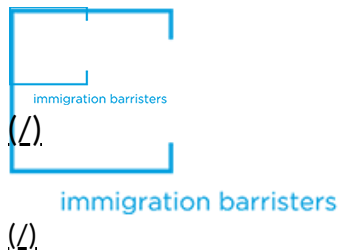
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